Topic 17 — Environmental Laws & Policies

Covers syllabus (click to expand)

Acts: EPA 1986 (पर्यावरण संरक्षण 1986) | WPA 1972 | FCA 1980 | BDA 2002 | Water Act 1974 | Air Act 1981 | NGT Act 2010 | FRA 2006 **Policies:** National Forest Policy 1952 | Environmental Law | Wildlife Protection (वन्यजीव सुरक्षा) Laws

Sources baked in: NCERT, MoEFCC, Constitution Arts 48A/51A(g)/21, SC environmental jurisprudence, UPPCS PYQs 2018–2025 **Weight:** ★★★ High — Act ↔ year, Bhopal→EPA, WPA schedules, FCA vs FRA **Last verified:** August 2026

Current Affairs (this topic)

- New Acts / Rules / NGT orders are living CA; WPA / EPA / FCA year spine stays fixed.
- Do not confuse NGT with NBA (biodiversity) on acronym stems.

17.1 Environmental Law (Constitutional Framework)

Identity: Art 48A | Art 51A(g) | Art 21 expansion | Concurrent List (समवर्ती सूची) | Rio principles in SC

- **Environmental law** in India combines **constitutional duties**, **statutory Acts**, and **Supreme Court/NGT jurisprudence**.
- **Article 48A** (DPSP) directs the **State** to protect and improve the environment and safeguard forests and wildlife.
- **Article 51A(g)** (Fundamental Duty) requires every **citizen** to protect and improve the natural environment.
- **Article 21** (Right to Life) was expanded by the Supreme Court to include the **right to a wholesome environment** (*M.C. Mehta*, *Subhash Kumar*).
- **Article 48** deals with **agriculture and animal husbandry** — it is **not** the environment article. Do not confuse with **48A**.
- Wildlife and forests fall under the **Concurrent List** (समवर्ती सूची) — Centre and states both legislate.
- The **pollution law chain** runs Water Act 1974 → Air Act 1981 → EPA 1986 as umbrella supplement.
- Indian courts have adopted (अंगीकृत) **Rio principles** — **Precautionary**, **Polluter Pays**, and **Public Trust** (*Vellore Citizens' Welfare Forum*).

Article	Type	Content
48A	DPSP	State protects environment
51A(g)	Fundamental Duty	Citizen protects environment
21	FR (expanded)	Healthy environment as part of life

Article	Type	Content
48	DPSP	Agriculture — **not** environment

17.2 Environment (Protection) Act, 1986

Identity: Post-Bhopal 1984 | Umbrella law | Article 253 | Section 3 | EIA/CRZ/ESZ | GEAC | CGWA

- The **EPA was enacted in 1986** after the **Bhopal Gas Tragedy (1984)** exposed gaps in environmental regulation.
- Parliament passed it under **Article 253** to implement decisions of the **Stockholm Conference (1972)** (स्टॉकहोम सम्मेलन) on the human environment.
- It is India's **umbrella environmental legislation** giving the Centre broad powers under **Section 3** to protect and improve the environment.
- **Section 6** empowers the Centre to make **rules** for environmental protection.
- EPA legally defines **"environment"** as water, air, land, and their inter-relationships with living beings.
- The **EIA Notification**, **CRZ rules**, and **ESZ notifications** are issued under **EPA Section 3** — not under the Water Act.
- EPA **supplements** the Water Act 1974 and Air Act 1981. It does **not replace** them.
- **Environmental Clearance** under EIA is distinct from SPCB **consent** under Water/Air Acts. Large projects may need **both**.
- The **Genetic Engineering Appraisal Committee (GEAC)** (जीईएसी) is constituted under the **Environment (Protection) Act, 1986**.
- It was earlier called the Genetic Engineering **Approval** Committee and was renamed **Appraisal** Committee on **22 July 2010**.
- GEAC is the apex body in MoEFCC for manufacture, use, import, export, and storage of hazardous microorganisms and genetically engineered organisms under the 1989 Rules.
- The **Central Ground Water Authority (CGWA)** (केंद्रीय भूजल प्राधिकरण) was constituted under **Section 3(3)** of the EPA, 1986 to regulate and control development and management of groundwater.
- **CGWA** (regulatory authority under EPA) is **not** the same as **CGWB** (assessment board under Jal Shakti (शक्ति)).
- Violations can attract imprisonment up to **5 years** and fines, extendable on continued violation.
- **MoEFCC** (पर्यावरण, वन और जलवायु परिवर्तन मंत्रालय) is the nodal ministry for EPA implementation.

PYQ — UPPCS Prelims 2022, Q11

When was the Environment (Protection) Act passed?

A. 1971

B. 1974

C. 1981

D. 1986

Show answer

Ans: D

Logic: Pair "EPA — 1974" or "Water Act — 1981" = **false**.

17.3 Wildlife (Protection) Act, 1972 & Wildlife Protection Laws

Identity: 6 Schedules | Hunting ban I–IV | NP Sec 35 | Tiger Reserve Sec 38V

- The **WPA was enacted in 1972** as India's unified **wildlife protection law**.
- It protects wild animals, birds, and plants and provides the legal basis for **National Parks**, **Sanctuaries**, and **Tiger Reserves**.
- **Six Schedules** classify species by protection level.

Schedule	Content
I	Highest protection — severe penalties
II–IV	Protected species — hunting restricted
V	**Vermin** — may be hunted
VI	Protected **plants**

- **Hunting** is banned for Schedule **I–IV** species with narrow exceptions for research or public safety with permission.
- **National Park (Section 35)** has the **strictest** protection — no grazing or exploitation.
- **Wildlife Sanctuary (Section 18)** allows more regulated human use under the Chief Wildlife Warden.
- **Tiger Reserves** are notified under **Section 38V** (2006 amendment) with **NTCA** oversight.
- The **National Board for Wildlife (NBWL)** (राष्ट्रीय वन्यजीव बोर्ड) is chaired by the **Prime Minister**.
- States implement WPA through the **Chief Wildlife Warden (CWLW)**.
- WPA does **not** cover forest land diversion (**FCA**) or community forest rights (**FRA**).

Logic: Schedule **V = vermin**, not highest protection. Schedule **I** = highest.

17.4 Water (Prevention and Control of Pollution) Act, 1974 & Air Act, 1981

Identity: Water 1974 → CPCB/SPCB | Air 1981 → NAAQS | Consent mechanism

Water Act 1974

- The **Water Act was enacted in 1974** — India's first major post-Stockholm pollution law.

- It created the **Central Pollution Control Board (CPCB)** (केंद्रीय प्रदूषण नियंत्रण बोर्ड) and **State Pollution Control Boards (SPCBs)**.
- SPCBs issue **Consent to Establish (CTE)** and **Consent to Operate (CTO)** for discharging effluents.
- CPCB sets **water quality standards** and coordinates state boards.

PYQ — UPPCS Prelims 2023, Q109 pattern

Water (Prevention and Control of Pollution) Act enacted in:

A. 1974

B. 1975

C. 1976

D. 1977

Show answer

Ans: A

Air Act 1981

- The **Air Act was enacted in 1981** to prevent and control **air pollution**.
- It extended CPCB's role to **air quality** and **National Ambient Air Quality Standards (NAAQS)**.
- SPCBs enforce air emission norms alongside water consent under the same board structure.

Act	Year	Key output
Water Act	**1974**	CPCB, SPCB, water consent
Air Act	**1981**	NAAQS, air pollution control

17.5 Forest (Conservation) Act, 1980 | Forest Rights Act, 2006 | National Forest Policy, 1952

Identity: FCA = diversion control | FRA = dweller rights | NFP 1952 revenue → NFP 1988 ecology (पारिस्थितिकी)

FCA 1980

- The **FCA was enacted in 1980** on **Tiwari Committee** recommendations to stop unchecked deforestation.
- **Prior Central Government approval** is mandatory before using **forest land** for **non-forest purposes** like mining, dams, or industry.
- Diversion requires **compensatory afforestation** and payment of **Net Present Value (NPV)** into **CAMPA** funds.
- The **Godavarman case (1996)** expanded "forest" to include areas meeting the dictionary meaning of forest, not only notified forests.

FRA 2006

- The **Forest Rights Act 2006** recognizes **Scheduled Tribes** and **Other Traditional Forest Dwellers (OTFDs)** who depend on forests.
- It grants **Individual Forest Rights (IFR)** up to **4 hectares** of cultivated land.
- Claims must prove occupation before **13 December 2005**.
- The **Gram Sabha** verifies and recommends claims.
- **Community Forest Resource (CFR)** (सामुदायिक वन संसाधन अधिकार) rights allow communities to manage and protect forest resources.
- FRA **recognizes rights** — it does **not** authorize forest diversion. That is **FCA's** role.

National Forest Policy, 1952

- The **National Forest Policy 1952** focused on **revenue and industrial use** of forests.
- Under NFP **1952**, forests were classed as **Protected/Conserved Forests, National Forests, Village Forests, and Tree Lands** — **National Park is not** a 1952 forest class.
- It was superseded in practice by the **National Forest Policy 1988**, which targets **33% forest/tree cover (वृक्ष आवरण) nationally** and **66% in hills**, with people's participation and ecology first.
- NFP **1988** includes afforestation of wastelands, reforestation, and wood substitutes — **not** wide promotion of insecticides/pesticides.
- Notes may cite **1952** from syllabus — know it as the **early revenue-oriented policy**.

Act	Purpose
FCA 1980	Stop forest **diversion** without Central approval
FRA 2006	Recognize forest **dweller rights**
NFP 1952	Early policy — revenue focus

17.6 Biological Diversity Act, 2002 & National Green Tribunal Act, 2010

Identity: BDA = CBD domestic law | NBA Chennai | NGT = appeals tribunal

BDA 2002

- The **Biological Diversity Act 2002** (जैव विविधता अधिनियम 2002) implements India's obligations under the **Convention on Biological Diversity (CBD)**.
- The **National Biodiversity Authority (NBA)** (राष्ट्रीय जैव विविधता प्राधिकरण) is headquartered at **Chennai**.
- **State Biodiversity Boards (SBB)** operate at state level.
- **Biodiversity Management Committees (BMC)** function at local panchayat level.
- **People's Biodiversity Registers (PBR)** document local biodiversity.
- The Act regulates **access and benefit sharing (ABS)** of biological resources and traditional knowledge.

NGT Act 2010

- The **NGT Act was passed in 2010** and the tribunal became operational in **2011**.
- NGT is a **specialized environmental court** for fast disposal of environmental cases.
- It draws inspiration from the right to a **healthy environment** read into **Article 21**.
- It has jurisdiction over civil matters under **EPA, WPA, FCA, Water Act, Air Act, and BDA**.
- NGT hears **appeals against Environmental Clearance** and pollution orders.
- The Act targets case disposal within **6 months**.
- NGT **does not grant EC** — MoEFCC/SEIAA do.
- NGT was created by an **Act**. CPCB was constituted under the **Water Act, 1974** — not by a mere executive order.
- NGT provides environmental justice and reduces the burden on higher courts. CPCB promotes cleanliness of streams and wells and improves air quality.
- The **National Environment Appellate Authority (NEAA, 1997)** was dissolved after NGT was established.

Act	Year	Key body
BDA	2002	NBA Chennai
NGT Act	2010	NGT Delhi